

		between the settler and the Plaintiff which would make the non-settling parties pay more than their fair share. (See Kimura Decl., ¶ 9.) Defendant states that the settlement amount is reasonable considering Plaintiff's claims against Defendant for the alleged assault and battery on the night at issue, as well as the risks and costs associated with experts, discovery, and trial. Per Code Civ. Proc., §877.6(d), "[t]he party asserting the lack of good faith shall have the burden of proof on that issue." No oppositions were filed. Accordingly, the Court finds that Defendant Jason Michael Fletchall-Silva's settlement with Plaintiff was made in good faith. Thus any claims for liability against Defendant by any other joint tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault, are barred. The case management conference is continued to November 30, 2026 at 10:00 a.m. in Department C27. Defendant shall give notice of this ruling, and file proof of service of same.
113	2023-01304133 Sepulveda vs. BaronHR West, Inc.	1. Motion to Be Relieved as Counsel of Record 2. Trial Setting Conference Eric Welch, Esq.'s motion to be relieved as counsel for Defendant BaronHR West, Inc. is continued to December 7, 2026 at 2:00 p.m. in Department C27. The trial setting conference is continued to the same date and time. Counsel has failed to file proof of service of the moving papers on Plaintiff and his client pursuant to Cal. Rules Ct., Rule 3.1362(d) and Cal. Code Civ. Proc., § 1005(b). In addition, the Court is not satisfied with counsel's representation that he has no reasonable ability to obtain his client's consent because the sole owner/shareholder is incarcerated. Counsel states he was advised that another attorney is handling all remaining civil issues including this case. If this is the case, it should not be difficult to obtain and file a substitution of attorney. Incarcerated individuals have access to counsel and the means to execute documents like a substitution of attorney. Accordingly, Defendant's counsel is ordered to serve notice of the continued hearing date and this order on his client and all other parties and file a proof of service of same pursuant to the Code of Civil Procedure, no later than 5 court days before the new hearing date. With the notice and proof of service, Counsel is also ordered to file a supplemental declaration if he cannot obtain the client's consent to a substitution detailing his efforts made in this respect.
114	2025-01524116 Doe vs. Eyenovia, Inc.	1. Motion – Other 2. Case Management Conference Defendant Michael Rowe's motion to revoke Plaintiff's Doe designation is granted.